

Section 131 provides that this chapter shall not apply to a railway servant whom the Factories Act, 1948 or the Mines Act, 1952 or the Merchant Shipping Act, 1958 applies.

132. Limitations of hours of work.- (1) A railway servant whose employment is essentially inrermittent shall not be employed for more than seventy-five hours in any week.

(2) A railway servant whose employment for more than fifty hours a week on an average in a two-weekly period of fourteen days.

(3) A railway servant whose employment is intensive shall not be employed for more than forty-five hours a week on an average in a two-weekly period of fourteen days.

(4) Subject to such rules as may be prescribed temporary exemptions of railway servants from the provisions of sub-sections (1) or sub-section (2) of sub-section (3) may be made by the prescribed authority is\f it is of opinion that such temporary exemptions are necessary to avoid serious interference with the ordinary working of the railway or in cases of accident, actual or threatened, or when urgent work is required to be done to the railway or to rolling stock or in a any emergency which could not have been foreseen or prevented, or in other cases of exceptional pressure of work.

Provided that where such exception results in the increase of hours of employment of a railway servant referred to in any of the sub-sections, he shall be paid over time at not less, than two times his ordinary rate of pay for the excess hours of work.

133. Grant of Periodical rest. – (1) Subject to the provisions of this section, a railway servant –

- (a) whose employment is intensive or continuous shall, for every week commencing on a Sunday, be granted a rest of not less than thirty consecutive hours ;
- (b) whose employment is essentially intermittent shall, for every week commencing on a Sunday, be granted a rest of not less than twenty – four consecutive hours including a full night.

(2) Notwithstanding anything contained in sub-section (1), -

- i. any locomotive or traffic running staff shall be granted, each month, a rest of at least four periods of not less than thirty consecutive hours each or at least five periods of not less than twenty – two consecutive hours each, including a full night ;

- ii. the Central Government may, by rules, specify the railway servants to whom periods of rest on scales less than those laid down under sub-section (1) may be granted and the periods thereof.

(3) subject to such rules as may be made in this behalf, if the prescribed authority is of the opinion that such circumstances as are referred to in sub-section (4) of Sec. 132 are present. It may exempt any railway servant from the provision of sub-section (1) or Cl. (i) of sub-section (2) :

Provided that a railway servant so exempted shall, in such circumstances as may be prescribed, be granted compensatory periods of rest for the periods he has forgone.

Comments

Section 132 provide for limitation of hours of work and Sec. 133 periodical rest for various category of railway servants.

134. Railway servant to remain on duty. – Nothing in this chapter or the rules made there under shall, where due provision has been made for the relief of a railway servant, authorise him to leave his duty until he has been relieved.

Comments

Section 134 lays down that a railway servant shall remain on duty until he is relieved.

135. Supervisors of railway labour. – (1) Subject to such rules as may be made in this behalf, the Central Government may appoint supervisors of railway labour.

(2) The duties of supervisors of railway labour shall be –

- i. to inspect railways in order to determine whether the provisions of this chapter or of the rules made there under are duly observed; and
- ii. to perform such other functions as may be prescribed.

(3) A supervisor of railway labour shall be deemed to be a Commissioner for the purposes of Secs. 7 and 9.

Comments

Section 135 deals with appointment of the supervisors and their duties.

136. Power to make rules in respect of matters in this chapter. –